

THE CORPORATION OF THE TOWN OF SMITHS FALLS

BY-LAW NO. 10279-2021

***BY-LAW TO AMEND BY-LAW 10076-2019 BEING A BY-LAW TO AUTHORIZE
EXECUTION OF A TRAIL ACCESS AGREEMENT WITH
THE RIDEAU LAKES ATV CLUB***

WHEREAS Section 8 of the Municipal Act, SO 2001, provides that a municipality has the capacity, rights, powers and privileges of a natural person for the purpose of exercising its authority under this or any other Act;

AND WHEREAS Section 9 of the Municipal Act, SO 2001, provides that Section 8 shall be interpreted broadly so as to confer broad authority on municipalities to enable them to govern their affairs as they consider appropriate and to enhance their ability to respond to municipal issues;

AND WHEREAS Council of the Corporation passed By-law 10076-2019 being a By-law to authorize execution of a trail access agreement with the Rideau Lakes ATV Club for the period of two years under a pilot project, ending November 30th, 2021;

AND WHEREAS Council of the Corporation of the Town of Smiths Falls now deem it appropriate to amend the terms of the agreement respecting a pilot project and to adopt a permanent trail.

NOW THEREFORE the Council of the Corporation of the Town of Smiths Falls enacts as follows:

1. THAT a permanent trail be approved for use by the Rideau Lakes ATV Club;
2. THAT By-law 10076-2019, Schedule A (Trail Access Agreement) be hereby amended to remove Item 24. Termination and replace it with the following wording:

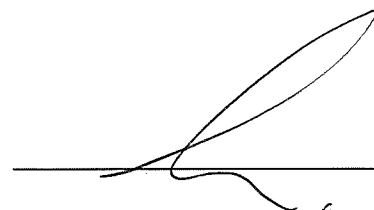
Termination

24. THAT permanent trail use as detailed in the Trail Access Agreement be provided, unless otherwise directed by Council.

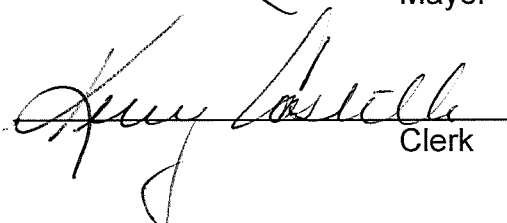
3. THAT all other provisions of this By-law 10076-2019 (including the Trail Access Agreement) remain in force and effect.

Read a first and second time this 22nd day of November, 2021

Read a third time and passed this 22nd day of November, 2021



Mayor



Clerk